

Chandan Dehiya and Another v. Madhyanchal Vidyut Vitaran Nigam Ltd. and 3 Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 6 November 2023 · 2023:AHC-LKO:73075-DB · WRIT - C No. 1049 of 2022 · By final judgment dated 06.11.2023 (Neutral Citation 2023:AHC-LKO:73075-DB) the Division Bench allowed the writ petition. The petitioners, occupiers of the property residing there and holding an electricity connection since 2016, had faced disconnection sought by the power corporation (respondent no. 1) in 2022 at the instance of respondents nos. 3 and 4 who claimed to own the property. The Court held that an ownership dispute is no ground to disconnect an occupier's supply and that no law permits an owner to disconnect a person's municipal services to force him into inhumane conditions and coercively evict him - eviction being permissible only in accordance with law. Invoking Annexure 4.2 of the Supply Code, it directed the petitioners to submit an indemnity bond under Clause 4.4 read with Annexure 4.2 within 15 days to respondent no. 2 (SDO), which respondent no. 2 would consider (requiring cure of any lacuna), the electricity supply to remain undisturbed; it further directed that the power corporation shall not insist upon title documents from the petitioners, and clarified that respondents nos. 3 and 4 may pursue eviction in accordance with law, the connection creating no right in the petitioners' favour in those proceedings.

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HEADNOTE

The petitioners, Chandan Dehiya and another, were occupiers of a property in which they had been residing and holding an electricity connection since 2016; in 2022 the power corporation (Madhyanchal Vidyut Vitaran Nigam Ltd., respondent no. 1) sought to disconnect the supply because respondents nos. 3 and 4, claiming to be the owners, contended that the petitioners' occupation was illegal and that no connection should be provided to them. The petitioners were willing to furnish an indemnity bond as provided in Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005 to secure payment of the bills; the Electricity Board accepted that on such a bond the connection would be duly provided. The Division Bench (Vivek Chaudhary and Manish Kumar, JJ.) held that it was undisputed that the petitioners had long been living in the property with a connection, and that although a property dispute might exist, no law permits an owner to disconnect the municipal services of a person occupying the property so as to force him to live in inhumane conditions and coercively evict him - eviction being permissible only in accordance with law. Annexure 4.2 specifically enables an occupier to furnish an indemnity bond so that the dues of the electricity he consumes are assured to the power corporation and the liability does not fall on the property or the landlord. The Court accordingly directed the petitioners to submit the indemnity bond under Annexure 4.2 within 15 days, the supply to remain undisturbed, held that the power corporation shall not insist upon title documents, and clarified that the owners may take eviction proceedings in accordance with law, the connection creating no right in the petitioners' favour therein. The writ petition was allowed.

FACTUAL SUMMARY

The petitioners, Chandan Dehiya and another, filed WRIT-C No. 1049 of 2022 (Lucknow Bench) contending that they were occupiers of the disputed property, residing in it, and had held an electricity connection since 2016, which the power corporation (Madhyanchal Vidyut Vitaran Nigam Ltd., respondent no. 1) sought to disconnect in 2022. Respondents nos. 3 and 4 claimed to be the owners of the property and asserted that the petitioners' occupation was illegal and that the power corporation should not provide any connection to them. The petitioners submitted that at best there could be a dispute regarding security for payment of the bills, for which they were ready and willing to furnish an indemnity bond as provided in Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005; counsel for the Electricity Board stated that the connection had been sought to be withdrawn because of the dispute, but that on submission of an indemnity bond as per law it would be duly provided. During the pendency, interim orders (from 23.03.2022) restrained disconnection subject to payment of regular bills, while leaving it open to respondents nos. 3 and 4 to seek the petitioners' eviction by appropriate remedy. The matter was finally heard and decided on 06.11.2023 (Vivek Chaudhary and Manish Kumar, JJ.).

REUSABLE CONSTRUCTIONS

1. An occupier of a building is entitled to an electricity connection on furnishing an indemnity bond under Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, which assures payment of the dues of the

electricity consumed by the occupier to the power corporation and ensures that the liability does not fall upon the property or the landlord. **order of 6.11.2023 para 3, 7-8**

2. A power corporation cannot insist upon title documents from an occupier as a condition of granting or continuing an electricity connection; occupation coupled with an indemnity bond under Annexure 4.2 suffices. **order of 6.11.2023 para 8, 10**
3. An owner/landlord cannot procure disconnection of an occupier's electricity (a municipal/utility service) to force him into inhumane conditions and coercively evict him; eviction can take place only in accordance with law, and the owner's remedy is to take eviction proceedings, the connection granted meanwhile creating no right in the occupier's favour in those proceedings. **order of 6.11.2023 para 7, 9**
4. A pending ownership or possession dispute between the occupier and the person claiming to be owner is not a ground for the power corporation to withdraw or refuse the occupier's electricity connection. **order of 6.11.2023 para 7**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

RATIO

Occupier entitled to a connection on an indemnity bond under Clause 4.4 r/w Annexure 4.2; power corporation cannot insist on title documents

QUESTION

Is an occupier of a building, whose ownership is disputed by another, entitled to retain or obtain an electricity connection on furnishing an indemnity bond under Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and can the power corporation insist upon title documents?

HOLDING

Yes to the connection; no to the insistence on title. It was not in dispute that the petitioners had been living in the property for long and had held an electricity connection since 2016. Annexure 4.2 of the Supply Code specifically provides that an occupier of a building can furnish an indemnity bond for a connection, so that the dues of the electricity consumed by the occupier are assured to the power corporation and the liability does not fall upon the property or the landlord. The Court therefore directed the petitioners to submit the indemnity bond in accordance with Annexure 4.2 within 15 days, respondent no. 2 to consider it and require cure of any lacuna, the electricity supply to remain undisturbed, and further made clear that the power corporation shall not insist upon title documents from the petitioners as it had earlier claimed. **order of 6.11.2023 para 3, 7-8, 10**

EVIDENCE “petitioners are ready and willing to submit indemnity bond as provided in Clause 4.4 read with Annexure 4.2 of Electricity Supply Code, 2005.” **order of 6.11.2023 para 3**

EVIDENCE “Annexure 4.2 of the Electricity Supply Code, 2005 specifically provide that an occupier of a building can give indemnity bond for connection so that payment of the dues of electricity consumed by him are assured to be paid to the power corporation and that liability does not fall upon the property or the landlord.” **order of 6.11.2023 para 7**

EVIDENCE “respondent no.1 power corporation shall not insist upon the title documents from the petitioners as was claimed earlier.” **order of 6.11.2023 para 10**

FLAG Compilation of order-sheets (22.02.2022-06.11.2023); the final judgment of 06.11.2023 is paragraph-numbered (paras 1-11) and carries Neutral Citation 2023:AHC-LKO:73075-DB, but the document bears no printed page numbers, so pins reference the order date/paragraphs.

INTERPLAY · UP-2005::4.4

RATIO

Ownership dispute is no ground to disconnect the occupier's supply; utility disconnection cannot be used to coerce eviction

QUESTION

Can an owner/landlord procure the disconnection of an occupier's electricity supply on the strength of an ownership dispute, so as to compel the occupier's eviction, or must the occupier's supply be maintained pending eviction in accordance with law?

HOLDING

The supply must be maintained. Though there might be a property dispute between the petitioners and respondents nos. 3 and 4 (who claimed ownership), that dispute did not justify withdrawing the occupier's electricity. No law permits an

owner to disconnect the municipal services of a person occupying the property so as to force him to live in inhumane conditions and coercively evict him; eviction can take place only in accordance with law. The owners' remedy is to take eviction proceedings in accordance with law; the electricity connection provided under the order creates no right in the petitioners' favour in those proceedings. The writ was accordingly allowed and the supply directed to remain undisturbed on the petitioners furnishing the indemnity bond. **order of 6.11.2023 para 7, 9, 11**

EVIDENCE “No law can permit an owner to disconnect the municipal services of a person occupying the property and force him to live in an inhumane condition and coercively evict him. Eviction from a property can only take place in accordance with law.” **order of 6.11.2023 para 7**

EVIDENCE “Respondent no.3 and 4 in the said circumstances can take proceedings in accordance with law for eviction of petitioners.” **order of 6.11.2023 para 7**

EVIDENCE “this order or the electricity connection provided to the petitioners under this order shall not in any manner create any right in favour of petitioners for the said proceedings.” **order of 6.11.2023 para 9**

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond-annexure-4.2 The petitioners being occupiers residing in the property, the Court directed grant/continuance of the connection on an indemnity bond under Clause 4.4 r/w Annexure 4.2, which secures the occupier's dues to the corporation without saddling the property or landlord. **order of 6.11.2023 para 3, 7-8**

no-insistence-on-title-documents-for-occupier-connection The Court made clear that the power corporation shall not insist upon title documents from the petitioner-occupiers as a condition of the connection. **order of 6.11.2023 para 10**

no-coercive-eviction-through-disconnection-of-utility-services The Court held that no law permits an owner to disconnect the municipal services of an occupier to force him into inhumane conditions and coercively evict him; eviction must be in accordance with law. **order of 6.11.2023 para 7**

ownership-dispute-no-ground-to-withdraw-occupier-supply Although respondents nos. 3 and 4 claimed ownership and challenged the petitioners' occupation, the pending dispute was held to be no ground for the corporation to withdraw the occupier's connection; the owners' remedy lay in eviction proceedings. **order of 6.11.2023 para 7, 9**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE OWNERSHIP/POSSESSION DISPUTE BETWEEN THE PETITIONERS AND RESPONDENTS NOS. 3 AND 4

Expressly left to be resolved in eviction proceedings in accordance with law; the Court clarified that the electricity connection granted under its order creates no right in the petitioners' favour in those proceedings. **order of 6.11.2023 para 7, 9**

RELATED CASES — SEE ALSO

SCJ-033 — Husna Bano - a tenant/occupier who cannot obtain the landlord's NOC is entitled to a connection on furnishing an indemnity bond, the very Annexure 4.2 route applied here.

SCJ-115 — Seema Mansoor - an occupier's application for a connection cannot be refused solely for want of the owner's consent (Section 43 r/w Clause 4.4), cognate to the occupier's entitlement upheld here.

SCJ-1206 — Smt. Chandra Kala Singh - pending tenant-landlord civil litigation is no ground to refuse a connection; Clause 4.4 provides the provisional/indemnity route relied on here.

SCJ-1260 — Neelam Sharma - a pending civil title dispute is not a ground to refuse a new connection, the same principle that an ownership dispute cannot bar the occupier's supply here.

SCJ-1235 — Landlady's writ against tenant's connection - the mirror posture, where the owner's challenge to an occupier's connection was declined, consistent with holding here that the owner cannot block the occupier's supply.